

SUPREME COURT OF THE STATE OF NEW YORK Index No.:
COUNTY OF BRONX

-----X
JOSE CALDERON,
Plaintiff,
- against -

SUMMONS

Plaintiff designates
Bronx as the place of
trial.

THE CITY OF NEW YORK, POLICE OFFICER
ADAM LANDESBURG, Tax No 949195 of the
52nd Police Precinct and POLICE OFFICERS
"JOHN DOE 1-10", names unknown but
believed to be Police Officers involved
in the arrest and assault of plaintiff,
Defendants.

The basis of venue is:
COUNTY OF OCCURRENCE

Plaintiffs reside at
3 West 192nd Street,
Bronx, NY

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this
action, and to serve a copy of your answer, or, if the complaint
is not served with this summons, to serve a notice of appearance
on the Plaintiff's attorneys within twenty days after the service
of this summons, exclusive of the day of service, where service
is made by delivery upon you personally within the state, or,
within 30 days after completion of service where service is made
in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the
relief demanded in the complaint.

Dated: Mineola, New York
December 27, 2013



Steve Marchelos
MARCHELOS LAW P.C.
Attorney for Plaintiff
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO: THE CITY OF NEW YORK
 100 Church Street
 New York, NY 10007

POLICE OFFICER ADAM LANDESBURG
Tax No. 949195
52ND Police Precinct
3016 Webster Ave
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE CALDERON,
Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER ADAM
LANDESBURG, Tax No 949195 of the 52nd
Police Precinct and POLICE OFFICERS "JOHN
DOE 1-10", names unknown but believed to
be Police Officers involved in the arrest
and assault of plaintiff,
Defendants.

Index No:

-----X

JOSE CALDERON, by his attorneys, MARCHELOS LAW P.C., alleges
the following, upon information and belief, as his Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant
Police Officers' unlawful and improper arrest and imprisonment of
plaintiff, physical assault, abuse, battery and harassment of
plaintiff, and use of intimidation and excessive force upon
plaintiff on September 29, 2012;

2. Plaintiff seeks declaratory relief pursuant to CPLR
§3001 and 28 U.S.C. § 2201, compensatory and punitive damages for
violation of plaintiff's civil rights pursuant to 42 U.S.C. §§
1981, 1983, 1985 and 1986 and an award of costs, disbursements
and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks
compensatory and punitive damages under State Law Tort claims;

JURISDICTION

3. This action is predicated upon violations of

plaintiff's Civil Rights protected under the United States Constitution inclusive of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

VENUE

4. That Venue for this action is placed in the County of Bronx because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

5. That on December 27, 2012, and within 90 days of the date of the occurrence complained of, plaintiff caused a Notice of Claim to be served upon defendant, THE CITY OF NEW YORK;

6. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served;

7. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

8. That on October 29, 2013, plaintiff presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which

gave rise to this action;

9. The defendant, CITY OF NEW YORK, never requested a physical exam;

10. That at last thirty days have elapsed since the service of the notice of claim and that Defendant, CITY OF NEW YORK has either neglected, failed and/or refused to pay and/or adjust the claim within the statutory period of time;

11. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

12. Plaintiff, JOSE CALDERON, was and continues to be a resident of the State of New York, County of Bronx;

13. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

14. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

15. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER ADAM LANDESBURG Tax No 949195 of the 52nd Police Precinct, [hereinafter referred to as "PO LANDESBURG"];

16. At all times relevant, defendant, PO LANDESBURG, was

a duly appointed and acting police officer of the CITY OF NEW YORK;

17. At all times relevant, defendant, the CITY OF NEW YORK employed the individual defendants, POLICE OFFICERS "JOHN DOE 1-10", names unknown but believed to be Police Officers who, along with PO LANDESBURG, were involved in the arrest and assault of plaintiff [hereinafter referred to as POLICE OFFICERS "JOHN DOE 1-10"];

18. At all times relevant, defendants, POLICE OFFICERS "JOHN DOE 1-10", were duly appointed and acting police officers of the CITY OF NEW YORK;

19. At all times relevant, the individual defendants, were acting under the color of State Law;

20. At all times relevant, the individual defendants, were acting both in their individual and official capacity as employees of defendant, THE CITY OF NEW YORK;

21. Notwithstanding the unconstitutional and unlawful conduct, the actions of the defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of THE CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

22. That on or about September 29, 2012 at approximately 4:00 a.m. of that day, plaintiff, JOSE CALDERON, was falsely and

unlawfully assaulted, battered and arrested by defendants, their agents, servants and/or employees at and about the entranceway of the building located at 3 West 192nd Street, Bronx, New York;

23. That plaintiff was at this location and had depressed the door buzzer in order to signal to his family members living within the building to let him in;

24. That just as plaintiff was about to enter the building, defendant PO LANDESBURG, along with other officers approached plaintiff from behind and slammed his head, face first, into the intercom;

25. That the plaintiff fell into the vestibule area of the building followed by the officers who proceeded to assault and batter the plaintiff;

26. That while in the vestibule, PO LANDESBURG placed the plaintiff under arrest and put him in handcuffs;

27. That plaintiff did not know the reason he was being arrested or why the police assaulted him;

28. That plaintiff was not doing anything unlawful while he was attempting to enter the apartment building and was ringing the buzzer;

29. As plaintiff was removed from the vestibule area of the premises, he observed numerous other police officers at the scene;

30. That the officers, inclusive of PO LANDESBURG and the

"John Doe" officers had no reason to approach plaintiff, assault and batter him;

31. That plaintiff was then taken to the North Central Bronx Hospital for medical treatment caused by the assault and battery by the defendant police officers inclusive of defendant PO LANDESBURG;

32. That plaintiff was thereafter taken to the 52nd Police Precinct and then to Bronx Central Booking Brooklyn where he was confined in unsanitary and crowded conditions;

33. That as a result of the foregoing, plaintiff was unlawfully approached, assaulted, arrested, battered, searched, intimidated and verbally and physically abused by these individual officers for no apparent reason;

34. That the arrest, assault and battery was unjustified and excessive by the individual defendants as plaintiff did not commit any act which would provoke such a violent response from the defendant police officers, inclusive of Defendant PO LANDESBURG and the "John Doe" police officers who were also at the scene;

35. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff. Indeed, plaintiff had not been at the location long enough to have committed any crime;

36. That plaintiff was confined and in the custody of the

defendants for a period of approximately 17 hours;

37. That plaintiff had knowledge of this confinement;

38. That plaintiff did not consent to the confinement;

39. That plaintiff was prevented from leaving the confinement;

40. That during this confinement, plaintiff was fingerprinted and photographed by, and at the direction of, the defendants;

41. That during this confinement, plaintiff was searched, and placed in various crowded cells which were too small for the number of people confined therein. He could not use bathroom because of the crowded condition and because the facilities were unsanitary and disgusting and he suffered extreme stress and anxiety as a result;

42. That on September 29, 2012 at approximately 8:30 p.m. plaintiff was arraigned and released on his own recognizance;

43. That the charges proffered against the plaintiff by the defendants were Assault in the second degree, Assault with intent to cause injury, resisting arrest and obstructing governmental Administration;

44. That on or about June 20, 2013, the charges that were levied against the plaintiff by these defendants were dismissed;

45. That plaintiff, JOSE CALDERON, sustained great fear, emotional harm, physical pain and injuries, embarrassment,

anxiety, stress and loss of self esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him as a result of the afore-referenced events;

46. That plaintiff, JOSE CALDERON, was caused to undergo medical treatment as a result of the unlawful actions of defendant herein and incurred damages as a result of the afore-referenced events;

47. That Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO
THE UNITED STATES CONSTITUTION PREDICATED
UPON FALSE ARREST AND IMPRISONMENT**

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

49. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the individual defendants, PO LANDESBURG and POLICE OFFICERS "JOHN DOE 1-10", individually deprived plaintiff, JOSE CALDERON, of the *rights, privileges and immunities* secured by the

Constitution and laws of the United States and the Fourteenth Amendment;

50. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of the substantive and procedural due process *right to be free from unreasonable search and seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

51. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of his *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

52. As a result of the aforescribed actions, including the patently offensive physical and verbal conduct and threatening remarks made by defendants during the aforementioned seizure, arrest, incarceration and assault of plaintiff, these defendants individually deprived plaintiff, JOSE CALDERON, of *Equal Protection under the Law* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

53. The aforescribed conduct by these defendants was motivated and instigated by defendant for other than lawful reasons and without probable cause;

54. The aforescribed constitutional violations are all

actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

55. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

56. As a result of the foregoing, plaintiff has suffered damages;

SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO
THE UNITED STATES CONSTITUTION PREDICATED
UPON USE OF EXCESSIVE FORCE

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

58. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, PO LANDESBURG and POLICE OFFICERS "JOHN DOE 1-10", individually deprived plaintiff, JOSE CALDERON, of the *rights, privileges and immunities* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

59. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of the

substantive and procedural due process *right to be free from unreasonable seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

60. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of his *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

61. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff, JOSE CALDERON, of *Equal Protection under the Law* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

62. The aforescribed conduct by these defendant was motivated and instigated by defendants for other than lawful reasons and without probable cause;

63. The amount and type of physical force used upon plaintiff JOSE CALDERON by these defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

64. The aforescribed constitutional violations are all

actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

65. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being;

66. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiff's constitutional rights;

67. As a result of the foregoing, plaintiff has suffered damages;

**THIRD CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON DEFENDANT'S
ADOPTION, IMPLEMENTATION, CREATION,
MAINTENANCE, TRAINING AND SUPERVISION OF THE
UNCONSTITUTIONAL CUSTOM, POLICY AND PRACTICE
KNOWN AS "STOP AND FRISK" (MONELL)**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

69. That the afore-described actions, including the manner in which defendant, THE CITY OF NEW YORK, created, adopted, implemented and maintained certain "stop and frisk" and

"stop and inquire" policies, customs, practices and procedures, violated the plaintiff's civil rights;

70. That the afore-described actions, including the failure of defendant, THE CITY OF NEW YORK, to properly train and supervise its employees to recognize and respect the constitutional boundaries of its "stop and frisk" and "stop and inquire" policy, custom and practice, demonstrates a reckless disregard for the civil rights of lawful citizens, including the plaintiff herein;

71. That the creation and/or existence of this policy, practice, custom and/or course of conduct has been known to the supervisory policy making employees of defendant, THE CITY OF NEW YORK, for a substantial period of time. In fact, they have encouraged it;

72. That the reckless disregard for the deficient manner in which this custom, practice and policy has been implemented has also been known to the supervisory policy making employees of defendant, THE CITY OF NEW YORK, for a substantial period of time;

73. That the reckless disregard for the deficient and improper manner in which its officers have been trained to implement this custom, practice and policy has also been known to the supervisory policy making employees of defendant, THE CITY OF NEW YORK, for a substantial period of time;

74. That the reckless disregard for the deficient manner in which its officers have been supervised in implementing this custom, practice and policy has also been known to the supervisory policy making employees of defendant, THE CITY OF NEW YORK, for a substantial period of time;

75. That despite its knowledge of these policies, customs and practices the supervisory and policy making employees of defendant, THE CITY OF NEW YORK, have not taken steps to terminate said practices, have not disciplined or otherwise properly supervised or retrained the officers who engaged in said practices, have not condemned or otherwise discouraged said practices, have not effectively trained or retrained employees with regard to proper investigatory practices, including how to recognize probable cause that a crime has been committed or reasonable suspicion to believe a crime will be committed, and have instead sanctioned the policy and practices described previously through their deliberate indifference to the effect of such policy and practices on the constitutional rights of the general public, including residents and visitors of THE CITY OF NEW YORK and the plaintiffs herein;

76. That defendant, THE CITY OF NEW YORK, by and through its policy making agents, servants and/or employees, having sanctioned this "stop and frisk" and "stop and inquire" policy, custom and practice, have caused a violation of the civil rights

of plaintiff and is vicariously liable to the plaintiff for injuries resulting from violations of the Fourth, Fifth and Fourteenth Amendments of the United States Constitution actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

77. As a result of the acts stated above, plaintiff has suffered a deprivation of liberty without probable cause, denial of due process, invasion of privacy, damage to character and reputation, mental stress and anxiety, and plaintiff will continue to suffer same in the future;

78. As a result of the acts stated above, plaintiff was compelled to and did incur expenses as a result, and were caused great social embarrassment in his community and in front of his family;

79. As a result of the foregoing, plaintiff has suffered damages;

**FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE
FOURTH AND FOURTEENTH AMENDMENTS TO THE
UNITED STATES CONSTITUTION PREDICATED UPON
MALICIOUS PROSECUTION**

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

81. As a result of the afore-described actions, in

particular, the prosecution of the criminal proceedings for criminal assault, Obstruction of governmental administration and Resisting Arrest, without probable cause, the defendants, acting jointly, individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiff, JOSE CALDERON, of the rights, privileges and immunities secured by the Constitution and laws of the United States including, but not limited to, plaintiff's right to be free and secure in his person, house and effects from unreasonable seizures except on probable cause, protected by the 4th Amendment of the United States Constitution and are actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

82. As a result of the afore-described actions, in particular, the prosecution of the criminal proceedings for criminal assault, Obstruction of governmental administration and Resisting Arrest, without probable cause, the defendants, acting jointly, deprived plaintiff, JOSE CALDERON, of his unabridged right to the privileges and immunities of citizens of the United States, including plaintiff's right to life, liberty and property, protected by the 14th Amendment of the United States Constitution and are actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

83. As a result of the afore-described actions, in particular, the prosecution of the criminal proceedings for

criminal assault, Obstruction of governmental administration and Resisting Arrest, without probable cause, the defendants, acting jointly, deprived plaintiff, JOSE CALDERON, of his right to equal protection under the law protected by the 14th Amendment of the United States Constitution and are actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

84. As a result of the afore-described actions, defendants, acting jointly, individually and/or vicariously by and through their agents, servants and/or employees, initiated and commenced the criminal prosecution against plaintiff, JOSE CALDERON, without just or probable cause and with malice;

85. That the prosecution ended with a dismissal of all charges against the plaintiff, JOSE CALDERON. That this dismissal constitutes a favorable determination on the merits;

86. The afore-described acts of defendants were intentional, willful, malicious and/or grossly negligent and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

87. The afore-described acts of defendants were performed under color of state law;

88. As a result of the acts stated above, plaintiff has suffered serious emotional harm, a deprivation of liberty without probable cause, denial of substantive and procedural due process, invasion of privacy, pain, suffering, anxiety, depression,

embarrassment, lost of esteem, a loss of enjoyment of life, anxiety, mental distress, damage to character, self esteem and reputation and plaintiff will continue to suffer same in the future;

89. As a result of the foregoing, plaintiff, JOSE CALDERON, has been damaged;

**FIFTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND DUE PROCESS
RIGHTS TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES, AS PROTECTED BY ARTICLE 1 OF
THE NEW YORK STATE CONSTITUTION PREDICATED
UPON THE ARREST AND IMPRISONMENT OF PLAINTIFF
WITHOUT PROBABLE CAUSE**

90. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

91. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants, PO LANDESBURG and POLICE OFFICERS "JOHN DOE 1-10", individually deprived plaintiff, JOSE CALDERON, of the *rights, privileges and immunities* secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

92. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of the substantive and procedural due process *right to be free from unreasonable search and seizures* secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

93. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of his *right to liberty* without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

94. As a result of the aforescribed actions, including the patently offensive physical and verbal conduct and threatening remarks made by defendants during the aforementioned seizure, arrest, incarceration and assault of plaintiff, these defendants individually deprived plaintiff, JOSE CALDERON, of *Equal Protection under the Law* secured by Article 1 Sections 1, 8, 11 and 12 of the New York State Constitution;

95. The aforescribed conduct by these defendants was motivated and instigated by defendants for other than lawful reasons and without probable cause;

96. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

97. As a result of the foregoing, plaintiff has suffered damages;

SIXTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER
ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE USE OF EXCESSIVE FORCE

98. Plaintiff repeats, reiterates and realleges each and

every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

99. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, PO LANDESBURG and POLICE OFFICERS "JOHN DOE 1-10", individually deprived plaintiff, JOSE CALDERON , of the *rights, privileges and immunities* secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

100. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of the substantive and procedural due process *right to be free from unreasonable search and seizures* secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

101. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOSE CALDERON, of his *right to liberty* without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

102. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff, JOSE CALDERON, of *Equal Protection under the Law* secured by Article 1

Sections 1, 8, 11 and 12 of the New York State Constitution;

103. The aforescribed conduct by these defendants was motivated and instigated by defendants for other than lawful reasons and without probable cause;

104. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

105. As a result of the foregoing, plaintiff has suffered damages;

SEVENTH CAUSE OF ACTION FOR ASSAULT

106. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

107. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension and fear of imminent harmful and offensive contact, thereby committing an assault upon him;

108. As a result of the foregoing, plaintiff has suffered damages;

EIGHTH CAUSE OF ACTION FOR BATTERY

109. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

110. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered and physically abused causing physical and emotional harm to plaintiff;

111. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing injury to plaintiff;

112. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

113. As a result of the foregoing, plaintiff has suffered damages;

**NINTH CAUSE OF ACTION FOR FALSE ARREST AND
IMPRISONMENT**

114. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

115. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

116. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

117. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

118. As a result of the foregoing, plaintiff has suffered damages;

**TENTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

119. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

120. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

121. As a result of the foregoing, plaintiff has suffered damages;

**ELEVENTH OF ACTION FOR NEGLIGENT SUPERVISION
AND RETENTION**

122. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

123. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

124. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

125. That at all times hereinafter mentioned, the

defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers;

126. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

127. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees condoned and/or ratified the conduct of the defendants, PO LANDESBURG and POLICE OFFICERS "JOHN DOE 1-10", by arresting and prosecuting plaintiff to coverup for the crimes committed by said police officers;

128. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

129. That at the time and place aforesaid, the defendant

CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, attacked, threatened, intimidated, falsely arrested and imprisoned, plaintiff causing serious injury to plaintiff;

130. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

131. As a result of the foregoing, plaintiff has suffered damages;

TWELFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

132. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

133. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the defendants;

134. That the aforesaid occurrence and resulting injuries

to plaintiff was due to the conduct of defendants which reflects utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff;

135. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants which reflects conscious disregard for the safety and well being of others and specifically the safety and well being of plaintiff;

136. That the conduct of defendants acting individually exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff;

137. That the conduct of defendants exhibited such a wanton dishonesty as to imply a criminal indifference to the defendants' civil obligations as public servants;

138. As a result of the acts stated above, plaintiff has suffered serious emotional harm in the form of great stress and anxiety, a deprivation of liberty without probable cause, denial of due process, invasion of privacy, mental distress, damage to character and reputation and plaintiff will continue to suffer same in the future;

139. As a result of the foregoing, plaintiff has been damaged;

140. As a result of the foregoing, defendants, including defendant PO LANDESBURG and POLICE OFFICERS "JOHN DOE 1-10",

should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff, JOSE CALDERON, respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's substantive and due process right to be free from unreasonable searches and seizures under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the false arrest and imprisonment of plaintiff;
2. As to the second cause of action, a declaration that plaintiff's substantive and due process right to be free from unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the use of excessive force;
3. As to the third cause of action, a declaration that plaintiff's substantive and procedural due process rights under the Fourth, Fifth and Fourteenth amendments to the United States Constitution predicated upon defendant's adoption, implementation, use, creation, maintenance, training and supervision of the unconstitutional custom, policy and practice known as "stop and frisk," and "stop and inquire" was violated (Monell claim);
4. As to the fourth cause of action, a declaration that plaintiff's substantive and procedural due process rights under the Fourth, Fifth and Fourteenth amendments to the United States Constitution to be free from unreasonable searches and seizures was violated predicated upon the malicious prosecution of plaintiff;

5. As to the fifth cause of action, a declaration that plaintiff's substantive and procedural due process rights to be free from unreasonable searches and seizures, as protected by Article 1 of the New York State Constitution predicated upon the false arrest and imprisonment of plaintiff was violated;
6. As to the sixth cause of action for violation of plaintiff's substantive and procedural due process right to be free from unreasonable searches and seizures under Article of the New York State Constitution predicated upon the use of excessive force, was violated;

(B) As to the first through eleventh causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

(C) As to the first through twelfth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

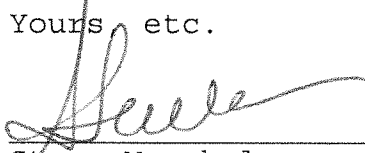
(D) As to the first through twelfth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through sixth causes of action, an award of attorney's fees as provided under 42 U.S.C. §1988; and

(F) Such other and further relief as this Court may deem just, proper and equitable.

Dated: Mineola, New York
December 27, 2013

Yours, etc.

A handwritten signature in cursive script, appearing to read "Steve Marchelos", written over a horizontal line.

Steve Marchelos
Marchelos Law P.C.
Attorney for Plaintiff
JOSE CALDERON
87 Mineola Blvd.
Mineola, NY 11501
(516) 248-0202

ATTORNEY'S VERIFICATION

STEVE MARCHELOS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at MARCHELOS LAW P.C., attorneys of record for Plaintiff(s), JOSE CALDERON. I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is not presently in the county wherein the attorneys for the plaintiff(s) maintains their offices.

DATED: Mineola, New York
December 27, 2013


STEVE MARCHELOS

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSE CALDERON,
Plaintiff,
- against -

THE CITY OF NEW YORK, POLICE OFFICER ADAM LANDEBERG, Tax No 949195
of the 52nd Police Precinct and POLICE OFFICERS "JOHN DOE 1-10",
names unknown but believed to be Police Officers involved in the
arrest and assault of plaintiff,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.
ATTORNEYS FOR PLAINTIFF(S)
87 MINEOLA BOULEVARD
MINEOLA, NEW YORK 11501
(516) 248-0202

To: Attorney(s) for Defendants

To: Attorney(s) for Defendants

To: Attorney(s) for Defendants

To: Attorney(s) for Defendants

Service of a copy of the within

is hereby admitted.

Dated:

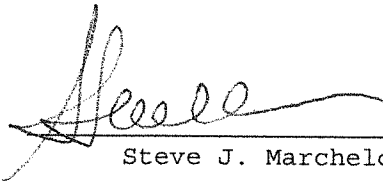
.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts
of the State of New York, respectfully affirms the truth of the following
statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her
knowledge, information and belief, formed after an inquiry reasonable under
the circumstances, the presentation of the paper(s) or the contents herein are
not frivolous as defined in Subsection C of Section 130-1.1.

Dated: December 27, 2013


Steve J. Marchelos